

24STCV20078 24STCV20078

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV20078 Hearing Date: July 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

30, 2026 TRIAL DATE: N/A

CASE: Arturo Viscarra v. Liliana Frankel, et al.

CASE NO.: 24STCV20078

OUT

OF COUNTRY SERVICE OF PROCESS

I. BACKGROUND

On

August 8, 2024, plaintiff Arturo Viscarra commenced this action against defendants Liliana Frankel (Frankel) and Andrew Bahena (Bahena) alleging causes of action for (1) defamation, (2) negligent infliction of emotional distress, and (3) intentional infliction of emotional distress.

On

January 17, 2025, the court granted the motion to quash of Lillian Frankel based on residency Mexico, with no basis of general or special jurisdiction in California.

On

March 20, 2025, the court granted the motion of Plaintiff's counsel to be relieved.

II. LEGAL STANDARD

The statute governing service upon a person outside the United States provides as follows: "c) Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the 'Service Abroad of Judicial and Extrajudicial Documents' in Civil or Commercial Matters (Hague Service Convention)."

(Code

Civ. Proc., § 413.10, subd. (c).)

"Article 1 of the Convention states that it 'shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad.'" (Balcom v. Hiller (1996) 46 Cal.App.4th 1758, 1764.) "The Convention describes several methods of effecting service of process. The primary method requires member states to designate a 'Central Authority' to receive requests of service, arrange for service of documents, and return proofs of service. (See arts. 2-7, Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, Nov. 15, 1965, 20 U.S.T. 361, T.I.A.S. No. 6638, reprinted in Fed. Rules Civ. Proc., foll. rule 4, 28 U.S.C.) Alternative methods of service are detailed under articles 8, 9, 10, 11 and 19." (Denlinger v. Chinadotcom Corp. (2003) 110 Cal.App.4th 1396, 1399.) Service must "be accomplished in a manner not objected to by" the participating country. (In re Alyssa F. (2003) 112 Cal.App.4th 846, 854.)

III. DISCUSSION

Plaintiff, in pro per, moves "for special appointment of a process server." The motion includes an "Affidavit to Specially Appoint Magaly Cobian to Serve Process in Accordance with the Hague Convention." Cobian explains the required means for service in Mexico, and requests approval to submit a request for service of process with the proper Mexican state authority.

The

court need not grant special leave for Plaintiff to attempt service of Defendants in Mexico. Plaintiff may proceed and file a proof of service with the court upon completion. Any potential challenges to service of process may require consideration. Thus, the court cannot otherwise preemptively determine the validity of any service before any attempts.

IV. CONCLUSION

The motion

for appointment of a special process server is denied without prejudice.

The court

will review service efforts at the August 11, 2026, Case Management Conference and OSCs re: Failure to File Proofs of Service and Dismissal of any Unserved Defendants.

Dated: July 30, 2026

Brock T.

Hammond

Judge of

the Superior Court